

HIGH COURT OF TRIPURA
A_G_A_R_T_A_L_A
Crl. Petn. No.30 of 2020

Sri Rajib Debnath, S/o. Sri Motilal Debnath, R/o. Vill: Naraura, P.O & P.S. Bishalgarh, District- Sipahijala, Tripura, Pin-799102.

.....Petitioner(s)
(Accused Person)

V E R S U S

1. The State of Tripura.
2. Sri Santosh Karmakar, S/o. Lt. Sukumar Karmakar, Village Opposite road of Kamalghat Stadium, P.S. Sidhai, District- West Tripura.

.....Respondent(s)

For Petitioner(s)	:	Mr. S. Kar Bhowmik, Advocate.
For Respondent(s)	:	Mr. S. Ghosh, Addl. P.P, Mr. R.G. Chakraborty, Advocate.

HON'BLE THE CHIEF JUSTICE MR. AKIL KURESHI

ORDER

25/09/2020

The petitioner has challenged an order dated 17.02.2020 passed by the learned Sessions Judge, Khowai, Tripura.

Brief facts are as under :

The petitioner is serving under the R.D. Department of the Government of Tripura as a Junior Engineer, Group-B Gazetted officer. Respondent No.2 herein was at the relevant time also in Government service. Against both of them, a criminal case bearing CR No.01/2004 was lodged on 09.01.2004 alleging offences punishable under Sections 403 and

409 of IPC. The allegations included defalcation and misappropriation of Government funds. After long delay charge-sheet was filed on 10.05.2010. The charge was framed against the accused on 19.05.2012. The prosecution examined witnesses between the years 2013 to 2018. Statements of the accused under Section 313 of Cr.P.C were recorded on or around 14.11.2018. The petitioner examined his defence witnesses between July 2019 to October 2019. The arguments were heard on different dates between November 2019 to January 2020. On 06.02.2020 during the course of arguments a reference was made to report of the handwriting expert dated 30.09.2005 by the prosecution. It was realized that due to oversight the said document was not exhibited. The prosecution therefore moved an application before the Sessions court on 17.02.2020 in which it was stated that inadvertently the said document which was part of the case diary was not exhibited. A prayer was therefore made for exhibiting the said document and reading the same as part of evidence.

On the said application the petitioner-accused agreed that the same may be executed, subject to his objections. The Sessions court thereupon passed the impugned order. He referred to Section 293 of Cr.P.C which under certain circumstances permits exhibition of document without calling an expert witness but was of the opinion that in the present case the person concerned i.e. the handwriting expert must be examined. He

therefore issued the summons to the said witness. This order the petitioner has challenged in the present petition.

Learned counsel for the petitioner submitted that the trial is going on since a long time and on account of which the petitioner is suffering irreparable loss. The trial in a complaint which was lodged in the year 2004 is still not over. The investigation was completed after years together. Thereafter also the prosecution showed no real urgency in completing the trial. At the fag end of the trial after substantial portion of the arguments were heard the prosecution filed the said application which should have been rejected by the Sessions court. The facility for summoning a witness cannot be utilized for plugging an error on part of the prosecution.

Learned counsel for respondent No.2 also supported the petitioner and submitted that the said respondent has retired from Government service in the year 2019 and on account of pendency of the present criminal proceedings his post retiral benefits are not finalized. Even his service benefits while he was in service have not been fully granted.

As noted in the present case the prosecution woke up to the reality that a document which they wanted to rely upon was not exhibited due to its error. In the meantime all witnesses were examined by both sides. Even the oral arguments were substantially heard. From the filing of the

complaint till date more than 16 years have passed. Both the accused who are Government servants will be suffering irreparable damage if the trial is further protracted. It appears that the witness in question may also not be readily available Ensuring presence of a witness concerned before the trial court therefore would be hugely doubtful. Even the request of the prosecution was to straightway exhibit the document without summoning the witness. In fact the Sessions court went beyond the request of the prosecution and summoned the witness. In fact a serious question would be, did the prosecution have a right to call the said witness at such a late stage when the defence witnesses were also examined. The accused had however not opposed exhibiting the document. Their only contention it should be subject to their objection.

In facts of the present case, this would be the best option. Let the document be exhibited as conceded by the accused. However, their contention with respect to the effect of the opinion of the handwriting expert is always open for argument. Learned counsel for the petitioner as well as respondent No.2 clarified that they do not wish to cross-examine the handwriting expert who has issued the certificate about the genuineness of a certificate or his opinion. Their contention would only be with respect to the effect of the opinion of the handwriting expert and its bearing on the charges levelled against the accused.

In the result, impugned order dated 17.02.2020 passed by the learned Sessions Judge, Khowai, Tripura is set aside. The document in question will be exhibited subject to the above noted objection of the accused.

Petition is disposed of accordingly. Pending application(s), if any, also stands disposed of.

(AKIL KURESHI), CJ

Dipesh.



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